

Smt. Ayesah Parveen Soudagar vs Farooq Soudagar Mohammad on 10 April, 2023

KABC040019922021

Presented on : 17-03-2021
Registered on : 17-03-2021
Decided on : 10-04-2023
Duration : 2 years, 0 months, 24 days

IN THE COURT OF THE METROPOLITAN MAGISTRATE,
TRAFFIC COURT - II, AT BENGALURU

DATED THIS 10 TH DAY OF APRIL 2023.

PRESENT : Smt.HAMSA V., B.Sc(Seri)., LL.B.,
C/c. M.M.T.C-II, BENGALURU.

Crl.Misc.No.21/2021

PETITIONER Smt. Ayesah Parveen Soudagar
Mohammed,
W/o Farooq Soudagar Mohammad,
Aged about 37 years,
R/at : No.30/5, 3 rd Main,
4 th Cross, SRK Garden,
Jayanagar, Bengaluru.

RESPONDENTS (By Sri. A.S.K., Adv.,)
V/s
1. Farooq Soudagar Mohammad,
S/o Kamal Pasha,
Aged about 33 years.

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2. Smt. Akbari Taj Sultana,
W/o Kamal Pasha,
Aged about 53 years.

3. Naseer Khan,
S/o Mastan Saheb,
Aged about 53 years.

4. Firdous Mohammed,
S/o Kamal Pasha,
Aged about 32 years.

--R/at : Islampet,
Opp. Lazza Ice Cream Factory,
Gosala, Vijayawada,
Andhra Pradesh.

(Exparte)

J U D G M E N T

The petition U/S 12 of Protection of Women from Domestic Violence Act, 2005 has been filed by the Petitioners against the Respondent, seeking the relief's U/S 18, 19 ,20 and 22 of the said Act

2. Brief facts of the petition are as follows :-

The petitioner No.1 is the legally wedded wife of respondent and their marriage was solemnized on Sunday of

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09.04.2017 at Bara Imam Panja Masjid, Guntur as per Mohammadan rites customs of Hindu religion in the presence of elders and relatives for mehr amount of Rs.5,25,000/-. After the marriage the petitioner and respondent lived together at Gosala till Friday. Then the 1 st respondent and the petitioner came to Bangalore and stayed together for 2 days. Then as the 1st respondent was working at Hyderabad and the petitioner was working at Bangalore they stayed at their work places. The 1st respondent used to visit the petitioner at Bangalore once in a month. It is stated by the petitioner that at the time of marriage it was told to the petitioner that the 1 st respondent is a software engineer with annual income of Rs.5,00,000/-. She further contends that the mehr amount is also not paid by the respondents. It is further submitted that 4th respondent was deported from United Kingdom 2014 and the same was hid from the petitioner and stated that he was working as SAP consultant at United Kingdom. It is also contended that Respondents hid the fact that the 2 nd respondent married the 3rd respondent after the death of biological father of the 1st respondent. The petitioner submits that the respondents even promised the petitioner and her parents that after marriage the 1st respondent will have to settle abroad.

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The petitioner further submits that within 3 months of marriage the respondents demanded 15 lakhs from the petitioner for purchasing the site behind their house. Then the petitioner and her mother arranged by borrowing from their relatives and gave the cash to the respondents. Even today the petitioner is repaying Rs.30,000/- every month.

The petitioner further states that in the year 2018 of February when the petitioner got good job at Mumbai, both the petitioner and the 1st respondent shifted to Mumbai and the petitioner herself took all the responsibilities of maintaining the house as the 1st respondent had no job. The petitioner even gave money for maintaining 1st respondent's parents house. It is the contention of the petitioner that the 1st respondent used to threaten the petitioner if she didn't fulfil the demands of the respondents. The 1st respondent used to treat the petitioner in abusive manner and used to quarrel over petty issues and abused using filthy language. The respondents have subjected the petitioner to physical and mental torture. Even after giving advice by the elders and well wishers to the respondent he didn't mend his behaviour.

In the month of July 2018 the petitioner left Mumbai in order to avoid the physical and mental cruelty and came back to Bangalore. Since then both the parties are residing

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separately. At the time of marriage, the parents of the petitioner gave 208 grams gold ornaments to the petitioner and 67 grams gold to the respondent. The petitioner and her mother spoke to the parents of 1st respondent and they demanded that the applicant must handover the salary to the respondents and the petitioner should bear a male child and she should not have any relation with her mother and her extended family. The 1st respondent used to suspect the petitioner and even slapped when the petitioner refused to give the phone password. The 1st respondent refused and neglected to lead a happy married life with the petitioner and the other respondents deserted the applicant. With these allegations, the present petition is filed.

3. After filing of the petition, this court issued notice to the respondents through registered post. But, the respondents have reluctant to receive the notice. Hence, the respondents placed ex-parte.

4. In order to substantiate the contention of the petitioners, the petitioner No.1 examined herself as PW-1 and

another witness as P.W-2 and got marked Ex.P-1 to 8 and closed her side.

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5. Heard the arguments.

6. On the basis of following aforesaid facts and circumstances, the following points arise for my consideration:

1. Whether the Petitioner No.1 proves that she has been subject to domestic violence?
2. Whether the Petitioner is entitled for the reliefs claimed in the petition?
3. What order?

7. My findings on the above said points are as under:
- Point No.1 : In the Affirmative.
- Point No.2 : Partly in the Affirmative.
- Point No.3 : As per the final order for the following:

:: REASONS ::

8. POINT Nos.1 AND 2: As these points are interconnected and arisen out of the domestic incident they are taken up together for common discussion in order to avoid the repetition of facts. The petitioner sought to pay the mehr amount of Rs.5,25,000/-, legal expenses of Rs.25,000/-,

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compensation of Rs.30,00,000/- and to return 275 gms of the gold jewellery given by the petitioner from the respondent. In order to get relief u/sec.12 of Protection of Women From Domestic Violence Act-2005 the petitioner has to prove domestic relationship and they were subjected to domestic violence by respondent.

9. To file a petition under Section 12 of the Act it is necessary that the petitioner has to establish two things. Firstly, she must establish that, she and the respondent lived

or are living together, in a domestic relationship. Secondly, that the respondent has subjected her to acts of domestic violence. To prove the domestic relationship the petitioner is required to prove that she and the respondent have lived together in a relationship of marriage or in a relationship in the nature of marriage or related by consanguinity or adoption or as family members living together as a joint family. To prove the act of domestic violence the petitioner is required to prove any one or more of the acts committed by the respondent as contemplated under section 3 of the Act.

10. The Petitioner No.1 in order to establish the domestic relationship she has produced the Marriage Booklet which is marked as Ex.P-1 , Marriage invitation card which is

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marked as Ex.P-2, translation of marriage booklet which is marked as Ex.P-2 and marriage photo which is marked as Ex.P-3. On careful examination of petition averments, evidence of petitioner and documents produced by her, it reveals that the petitioner and respondent No.1 are the husband and wife and they were lived in a domestic relationship. The petitioner No.1 has successfully proved the domestic relationship with the respondent No.1.

11. Now the moot question arises whether the respondents have subjected the petitioner to domestic violence. The petitioner has contended that the respondents have not paid the mehr amount, but P.W-1 has not produced any documentary evidence to prove the same. It is true that Ex.P-2 (a) is translated copy of marriage booklet and the mehr amount is mentioned as 5,25,000/-, but whether the amount is due is not mentioned in it. On perusal of Ex.P-2(a) the word DUE is hand written hence court cannot rely on the said document for considering the due mehr amount. The petitioner in her petition has clearly stated that after marriage the Respondents demanded Rs.15 lakh cash for purchase of site. She also deposed that she had paid the said amount by way of cash by borrowing from her relatives. In order to prove the same she has examined P.W-2 who has lent money to her.

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P.W-2 has deposed that she has paid the amount to P.W-1 and P.W-1 is repaying the same every month. Neither P.W-1 nor P.W-2 has produced any documentary evidence to prove the payment of same. P.W-1 has produced Ex.P-5 HDFC bank statement on careful perusal of Ex.P-5 it clearly shows that the

said statement doesn't belong to P.W-1. Moreover P.W-2 also has not produced any document to prove that she was in possession of Rs.15,00,000/- which she has lent to P.W-1. Hence at this point without any material evidence court cannot rely on the oral evidence of P.W-1 and P.W-2. P.W-1 has deposed that the 1st respondent used to demand money for his personal expenses from P.W-1 and she has given the money. After perusal of Ex.P-4 it clearly shows that P.W-1 has repeatedly transferred money to the 1st respondent. This shows that PW.1 was subjected to economic abuse by the respondent.

12. The petitioner has requested to return the gold ornaments which are in possession of the respondent but the Petitioner has not produced any single documents in respect of ornaments which are alleged to have been given by the petitioner parents at the time of marriage, engagement and thereafter. P.W-1 has produced Ex.P-6 to Ex.P-8 the gold purchase bills which were purchased by P.W-1, but she has not made any efforts to lead supportive or cogent evidence

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regarding the possession of the same. On 03.12.2020 and 16.12.2020 P.W-1 along with her maternal uncle and Government Mufti pleaded the respondents to stop harassing the petitioner, but the respondents didn't agree to meet the petitioner and her family. The 1st respondent deserted and refused to lead happy married life with the petitioner. On perusal of the oral as well as documentary evidence of PW-1 it clearly demonstrates that the 1st respondent has deserted the petitioner and has caused the domestic violence on her. There is no reason to disbelieve the evidence of PW-1 as the Respondents have remained exparte. The evidence of the PW-1 is unchallenged. Abusing and threatening and also torturing for money from the Petitioner clearly amounts to domestic violence. The Respondent No.1 is residing separately and he is not maintaining the Petitioner and also he is not providing any amount towards her maintenance. The act of the Respondent No.1 by not making any sort of arrangement to pay the maintenance to the Petitioner constitutes economic abuse within the meaning of Section 3 of the Act.

13. It has been held by the Hon'ble High Court of Karnataka reported in: 2010 (1) KCCR 319 (K.Kumar Vs. Smt. Leena & Another), that, it is bounden duty of the husband to maintain the wife. The relevant paragraph is extracted here below:

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"10. The framers of the Constitution of India had in their mind to provide equality of status, social justice and therefore, the status and social justice have been incorporated in the preamble of the Constitution. By an amendment to the Constitution, the expression "Sovereign Social Secular Democratic Republic was introduced and the expression "Socialist State" means to eliminate inequality in income and status and standards of life. The commencing words of the Constitution represent "WE, THE PEOPLE OF INDIA....." is only in the capital words and even while naming the highest authorities under the Constitution, the capital words are not used to indicate that the people of this Country are given more prominence than any constitutional authorities functioning under the Constitution of India, and therefore the people of this country are

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entitled to the benefits provided in the Constitution. The provisions of the Constitution will have to be interpreted not in the background of the western culture, but will have to be interpreted in the contest of ethics, moral values, happiness of one and all which culminated into the composite culture that the people of this Country have inherited since the past. So, looking to the culture of this Country, ethics and moral values introduced therein impose an obligation on the husband to maintain his wife and children as they have to be kept in the same status as that of the husband."

14. Further, the Court can take judicial notice of the intention behind enactment of Protection of Women from Domestic Violence Act, 2005. This Act is enacted to provide safety and economical justice to estranged wives. Hon'ble Supreme Court of India in: (2008) 4 SCC 649 (Vimalaben

Ajitbhai Patel V/s. Vatslaben Ashokbhai Patel) has held that:

"A.Crimes against Women and children-Protection of Women from Domestic Violence Act, 2005-Sections 17 and 20-Applicability-Held, provides for a higher right in favour of the wife- She not only acquires a right to be maintained but also there under acquires a right of residence which is a higher right.

15. This Act is in furtherance of constitutional goal as enshrined under Article 15(3) of Constitution of India. It can be seen from the Statement of objects contained in the Act that this Act intends to achieve gender equality and to provide speedy justice to the destitute wives. This Act covers those women who are or have been in relationship with the abuser where both parties lived together in a shared household and are related by consanguinity or marriage or through a relationship which is in the nature of marriage or adoption. It is an Act to provide more effective protection to the rights of women guaranteed under the Constitution who are victims of

violence of any kind occurring within the family. The phenomenon of domestic violence is widely prevalent and remained largely invisible in the public domain. This enactment was enacted keeping in view of the rights guaranteed under articles 14, 15, and 21 of the Constitution which is intended to protect the woman from being victims of domestic violence and to prevent the occurrence of domestic violence in the society.

16. The Petitioner has stated on oath that the Respondent No.1 is employed in Deutsche Bank Operations India and earning monthly Income of Rs.2,97,160/- . With regard to the income is concerned, except oral evidence she has not placed any material evidence before this court. The Petitioner has failed to prove the alleged income of the Respondent No.1. But it is not in dispute that at present, the Petitioner is not residing with the Respondent No.1. The Respondent No.1 is not providing any economic resources to her for her maintenance. He being the husband, it is his moral

as well as legal obligation to maintain her. The case of the Petitioner, that the Respondent No.1 is not looking after her remained un-rebutted. It is trite that, if the husband is healthy, able bodied and is in a position to support, he has the legal obligation to support his wife and children unless they

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are disqualified to receive the same. Evidence on record indicates that the Respondent No.1 has deprived the Petitioner from economic resources to which she is entitled under the law.

17. Now on perusal of Ex.P-1 to Ex.P-3 it clearly reveals that, the Respondent No.1 is the husband of Petitioner No.1 and that after the marriage the Respondent No.1 subjected Petitioner No.1 to cruelty both mentally and physically and he abandoned the Petitioner and he is residing separately. On the status of Petitioner she is the legally wedded wife of Respondent No.1 and it is bounden duty of husband to maintain his wife and children. Further with regard to the domestic violence is concerned, there is no reason to disbelieve the case of the Petitioner and her documents. It is the object of legislature of D.V. Act to protect the aggrieved person from hungry and starvation. Therefore, this Court is of the considered opinion that it is a fit case to award adequate and reasonable compensation to the petitioner besides passing an order of maintenance and other reliefs. In the result, I answer Point No.1 in the affirmative and Point No.2 partly in the affirmative.

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18. POINT No.3:- In view of my discussion on the aforesaid points, I proceed to pass the following:

:: ORDER :

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The petition filed by the Petitioner U/S 12 Protection of Women from Domestic Violence Act, 2005 is hereby partly allowed.

Further, Respondents are hereby restrained from communicating in any form with the Petitioner, including personal, oral or written or electronic or telephone contact and also restrained from causing violence to the petitioner, other relatives or any person who give the assistance to the petitioner from domestic violence.

Further, Respondent No.1 is ordered to pay monthly maintenance of Rs.10,000/- to the Petitioner from the date of petition till her death or till she gets second marriage. Further, Respondent No.1 is ordered to pay compensation of Rs.6,00,000/- to the Petitioner and also ordered to pay expenses of case Rs.5,000/- to the Petitioner.

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(Dictated to the Stenographer, transcript computerized by her, revised corrected and then pronounced by me in the open Court on this the 10 th day of April 2023).

(HAMS.A. V) C/C. MMTC-II, BENGALURU.

ANNEXURE WITNESSES EXAMINED FOR THE PETITIONERS:

PW.1 Ayesha Parveen Soudagar Mohammed PW.2 Faiz Pasha DOCUMENTS EXHIBITED FOR THE PETITIONERS:

Ex.P.1 Marriage invitation card Ex.P.2 Marriage booklet Ex.P.3 Photo Ex.P.4 Standard Chartered Bank Statement Ex.P.5 HDFC Bank statement Ex.P.6 & 7 Tax Invoices of Sulthan Diamonds & Gold Ex.P.8 Tax Invoice of Tanishq Jewellery WITNESSES EXAMINED FOR THE RESPONDENTS :

NIL DOCUMENTS EXHIBITED FOR THE RESPONDENTS :

NIL (HAMS.A. V) C/C. MMTC-II, BENGALURU.